

ἂν εὐσημία γένηται. δεῖ δὲ προβούλευμα γενέσθαι καὶ περὶ
20 τούτων.

45. ἡ δὲ βουλή πρότερον μὲν ἦν κυρία καὶ χρήμασιν ζημιῶσαι
καὶ δῆσαι καὶ ἀποκτείνειαι. — καὶ Λυσίμαχον αὐτῆς ἀγαγούσης
ὡς τὸν δῆμιον, καθήμενον ἤδη μέλλοντα ἀποθνήσκειν, Εὐμη-

19 ΓΕΝΕΣΘΑΙ edd.: γίνεσθαι K-W.

XLV 1 χρήμασι H-L. 2 post ἀποκτείνειαι lacunam indicant K-W. <Λυσίμ. δ' >
deleto καὶ Papageorgios. αὐτῆς <ποτ' ἀπ' > ἀγαγούσης B⁴ appendix. 3 καθήμενον
ἦδη K, K-W, H-L, Th; καθ. ἡδη <καὶ> Jos. Mayor (B); *καὶ αὐθήμερόν* ἦδη S¹, coll.
Aeschin. I § 16 (lex) παραδοθεὶς τοῖς ἑνδεκα τεθνάτω αὐθήμερόν. 3, 5 ΑΠΟΘΝΗΣΚΕΙΝ:
ἀποθνήσκειν edd., cf. Meisterhans, p. 177³, n. 1475.

have become appreciably weaker, and the story would have lost its point. On the bearing of the date of election on the 'deposition of Pericles,' see *Class. Rev.* v 165, viii 78 f; Swoboda in *Hermes* xxviii part 4; Beloch, i 529 n. 1.

εὐσημία] 'on whatsoever days there are signs of fair weather.' εὐσημία is found in Hippocr. 1170; εὐσημος in *Meteor.* p. 363 a 27, γέγραπται τοῦ μάλ-
λον εὐσημῶς ἔχειν ὁ τοῦ ὀρίζοντος κύκλος.

The proviso is one of practical importance in the case of a large meeting on an open hill-side like that of the Pnyx. Even when the ordinary ἐκκλησίαι came to be held in the theatre of Dionysus (e.g. in 290 B.C.), the Pnyx continued to be the scene of the ἀρχαι-
ρεσίαι (Pollux viii 133).

When the δῆμος was desiring to elect Cleon as στρατηγός, there was thunder and lightning, an eclipse of the moon and afterwards one of the sun, Arist. *Nub.* 581-6 (and Schol.). Presumably amid all these portents the election was deferred. In Thuc. v 45 ult. an ἐκκλησία is adjourned because of an earthquake. Even a drop of rain was sufficient to be regarded as a 'sign from heaven,' διοσημία 'οἷ τι καὶ βάνις βέβληκῇ με (*Ach.* 171). Cf. Suidas, s.v.

προβούλευμα κτλ.] In accordance with the general principle ordained by Solon, Plut. *Sol.* 19, μηδὲν ἑάν ἀπροβουλευτὸν εἰς ἐκκλησίαν ἐσφάρεσθαι.

XLV—XLIX. The functions of the Council.

XLV § 1. κυρία—ζημιῶσαι] The βουλή was not competent to inflict a higher fine than 500 dr., Dem. c. *Euerg.* p. 1152 § 43, (after an εἰσαγγελία) ἐν τῷ διαχειροτονεῖν ἢ βουλῇ πότῃ δικαστηρίῳ παραδότη ἢ ζημιώσῃ ταῖς πεντακοσίαις, ὅσον ἦν κυρία κατὰ τὸν νόμον. In a decree drawn up about 446 B.C. any encroachment on the Πελαργικὸν is punished by a

fine of 500 dr., to be inflicted after an εἰσαγγελία has been brought before the βουλή by the archon βασιλεὺς (Ditt. no. 13, 59).

δῆσαι] Arist. *Thesm.* 943, ἔδοξε τῇ βουλῇ σε δεῖν. A limitation to this right is mentioned in the oath taken by the Council in Dem. c. *Timocr.* 144, οὐδὲ δῆσ' Ἀθηναίων οὐδένα, ὅς ἂν ἐγγυητὰς τρεῖς καθιστῇ τὸ αὐτὸ τέλος τελοῦντας: πλὴν ἐάν τις ἐπὶ προδοσίᾳ τῆς πόλεως ἢ ἐπὶ καταλύσει τοῦ δήμου συνῶν ἄλλῳ ἢ τέλους τι πριάμενος ἢ ἐγγυησάμενος ἢ ἐκλέγων μὴ καταβάλλῃ. It is there stated that this oath was in the interest of untried persons to give them every opportunity for preparing for their defence. In § 148 we are told that 'Solon' made the Council ἄκρον τὸν δῆσαι, i.e. did not grant them an absolute right of imprisonment, but a limited right subject to proper bail being found. In certain cases, however, bail was not allowed, and in these the Council's right was not barred. See also 22 § 2 and 48 § 1.

Cleophon was imprisoned by the Council and then handed over to the dicastery (Lys. 30 § 10); he was condemned to death by a court consisting of the Council and a dicastery, *ib.* 11, and 13 § 12 (Newman).

Λυσίμαχον] possibly the person of that name mentioned in Xen. *Hell.* ii 4, 8, (the Thirty) Λυσίμαχον τὸν ἱππαρχὸν ἐκέλευον ἀναγαγόντα παραδοῖναι αὐτοῖς τοῖς ἑνδεκα. On the restoration of the democracy his services to the Thirty may well have been remembered against him.

καθήμενον ἤδη μέλλοντα ἀποθνήσκειν] The culprit is described as seated, ready to receive the fatal blow. The double participle is awkward, but no satisfactory improvement of the text has been suggested. Cf. Kaibel, 208.

One Sosias had a similarly narrow escape: Antiphon 5 § 70, ὁ ἀνὴρ ἀπήχθη (MSS, ἀνήχθη Dobree, ἀπελύθη Kayser,

λίδης ὁ Ἄλωπεκῆθεν ἀφείλετο, οὐ φάσκων δεῖν ἄνευ δικαστηρίου γνώσεως οὐδένα τῶν πολιτῶν ἀποθνήσκειν· καὶ κρίσεως ἐν δικαστηρίῳ γενομένης, ὁ μὲν Λυσίμαχος ἀπέφυγεν, καὶ ἐπωνυμίαν ἔσχεν ὁ ἀπὸ τοῦ τυπάνου, ὁ δὲ δῆμος ἀφείλετο τῆς βουλῆς τὸ θανατοῦν καὶ δεῖν καὶ χρήμασιν ζημιῶν, καὶ νόμον ἔθετο, ἃν τινος ἀδικεῖν ἢ βουλή καταγνῶ ἢ ζημιώσῃ, τὰς καταγνώσεις καὶ τὰς ἐπιζημιώσεις εἰσάγειν τοὺς θεσμοθέτας εἰς τὸ δικαστήριον, καὶ ὃ τι ἂν οἱ 10 δικασταὶ ψηφίσωνται, τοῦτο κύριον εἶναι.

[Col. 24.] 2

κρίνει δὲ || τὰς ἀρχὰς ἢ βουλή τὰς πλείστας, καὶ μάλισθ' ὅσαι χρήματα διαχειρίζουσιν· οὐ κυρία δ' ἡ κρίσις, ἀλλ' ἐφέσιμος εἰς τὸ δικαστήριον. ἔξεστι δὲ καὶ τοῖς ιδιώταις εἰσαγγέλλειν ἢν ἂν βούλωνται τῶν ἀρχῶν μὴ χρῆσθαι τοῖς νόμοις· ἔφεσις δὲ καὶ 15 τούτοις ἐστὶν εἰς τὸ δικαστήριον, ἐὰν αὐτῶν ἢ βουλή καταγνῶ.

3 ΕΥΜΗΛΕΙΔΗΣ (B¹ coll. Φιλομηλείδης Od. ρ 134): Εὐμηλίδης K-W, H-L, K³, B²⁻⁴, Th. 4 ἈΛΩΠΕΘΗΚΗΝ coll. K. 5 <τῷ> δικαστηρίῳ K-W^{1,2} (τῷ om. K-W³), idem in c. 46, 10 et c. 55, 7 τῷ non inserunt. 6 ἀπέφυγε H-L. ΕΥΧΕΝ (K-W, H-L, K⁴, Th): ἔσχε B, εἶχεν K¹. 8 ἐάν H-L. 9 ἐπιζημιώσεις (nusquam alibi inventum) K, K-W, B, Th: ζημιώσεις Wyse, H-L. 12 καὶ suprascriptum agn. Sakellarios (K⁴, Th). 13 ἐτ' ἐφέσιμος H-L.

ἀπηλλάχθη Baiter; ἀφείλετο, in the text, suggests ἀφῆρέθη) ὑπὸ τοῦ δήμου τοῦ ὑμετέρου παραδεδομένος ἤδη τοῖς ἑνδεκα.

Εὐμηλίδης] The only passage where the name is found, as that of an Athenian, is [Dem.] 49 § 11, τῷ παιδί τοῦ Εὐμηλίδου. The date of the speech is B.C. 362.

ἀφείλετο] here 'rescued him.' It is used below in another sense: 'deprived of the power of.'

δικαστηρίῳ] without the art. in 46 § 2 and 55 § 2; but with the art. in 47 § 3, 49 § 3, 55 § 4 and 56 § 1. The article is omitted only where the court is contrasted with another (Kaibel, 208f). βουλή always has the article.

ὁ ἀπὸ τοῦ τυπάνου] 'the man who escaped the bastinado.' Schol. Arist. *Plut.* 476, τύμπανα...ξύλα, δι' ὧν τοὺς καταδίκους ἐτυπτον, and Photius, *s. v.* τύμπανον. Cf. Lys. 13 § 56, ὡς ἀνδροφόνον ὄντα—τῷ δημῷ παρέδοτε καὶ ἀπετυμπανίσθη, *ib.* 67, 68; and Dem. 9 § 61. This form of punishment was inflicted on κακοῦργοι, including ἀνδροφόνου. This confirms the conjecture that Lysimachus was arraigned for taking part in causing citizens to be put to death under the Thirty (Xen. *l. c.*). The restriction in the powers of the βουλή mentioned in this chapter has already been noticed in more general terms in c. 41, αἱ τῆς βουλῆς κρίσεις εἰς τὸν δῆμον ἐληλύθασιν, a passage referring to the time subsequent to the archonship

of Euclides. Even before that time the βουλή did not necessarily enforce its right of inflicting penalties, but sometimes exercised the option of referring the case to a law-court, cf. CIA i 59, (τὴν βουλὴν) κολάζειν τῶν δωροδοκούντων καταψηφισμένην, καὶ εἰς δικαστήριον αὐτοὺς εἰσάγειν, καθότι ἂν δοκῇ αὐτῇ.

ἐπιζημιώσεις] not found elsewhere. τὰ ἐπιζήμια is used of 'penalties' in Dem. and Plato; ἐπιζημιῶν, in Xen. *Hell.* v 2 § 22; ἐπιζημίωμα, in Pollux viii 149. We also have ἐπιβάλλειν ζημίαν and ἐπιτιμίαν.

θεσμοθέτας] 59.

§ 2. κρίνει τὰς ἀρχὰς] Antiphon, 6 § 49, πυθόμενος αὐτοὺς (the πορισταί, πωληταί, πρακτορες and ὑπογραμματεῖς) δεινὰ καὶ σχέτλια ἐργάζεσθαι, εἰσῆγον εἰς τὴν βουλὴν.

ἐφέσιμος] [Dem.] 7 § 9, ταῦτα δὲ κύρια ἔσεσθαι οὐκ ἐπειδὴν ἐν τῷ δικαστηρίῳ τῷ παρ' ὑμῶν κυρωθῇ...ἀλλ' ἐπειδὴν ὡς ἐαυτὸν ἐπανεχθῇ, ἐφέσιμον τὴν παρ' ὑμῶν γενομένην γνῶσιν ὡς ἐαυτὸν ποιούμενος. Lucian, *pro Imaginibus* 15, ἐφέσιμον...δικην Pollux viii 125, (κρίσει) ἐφέσιμον.

εἰσαγγέλλειν] probably here used in the general sense of bringing to the knowledge of the Council, without reference to the special process called εἰσαγγελία. The procedure in the latter case is described by Dr Hager in *Dict. Ant. s. v.*, i 709 a.

δοκιμάζει δὲ καὶ τοὺς βουλευτὰς τοὺς τὸν ὕστερον ἐνιαυτὸν 3
βουλευσοντας καὶ τοὺς ἐννέα ἄρχοντας. καὶ πρότερον μὲν ἦν
ἀποδοκιμάσαι κυρία, νῦν δὲ <καὶ> τούτοις ἔφεσις ἐστὶν εἰς τὸ
20 δικαστήριον.

τούτων μὲν οὖν ἄκνρὸς ἐστὶν ἡ βουλὴ· προβουλεύει δ' εἰς τὸν 4
ἄνθρωπον, καὶ οὐκ ἔξεστιν οὐδὲν ἀπροβούλευτον, οὐδ' ὃ τι ἂν μὴ
προγράψωσιν οἱ πρυτάνεις, ψηφίσασθαι τῷ δήμῳ· κατ' αὐτὰ γὰρ
ταῦτα ἔνοχός ἐστιν ὁ νικήσας γραφῇ παρανόμων.

46. ἐπιμελεῖται δὲ καὶ τῶν πεποιημένων τριήρων καὶ τῶν
σκευῶν καὶ τῶν νεωσοίκων, καὶ ποιεῖται καινὰς [[δὲ]] τριήρεις ἡ

19 <καὶ> τούτοις K-W, B.
Kontos, H-L; v. Dem. 20 § 96.

23 τὸν δῆμον Papageorgios.

κατὰ γὰρ ταῦτα

XLVI 2 δὲ secl. κ (edd.); 'an δέκα?' Th.

§ 3. δοκιμάζει—βουλευτὰς] Dem. Mid.
111, βουλευναι μου λαχόντος δοκιμαζομένου
κατηγόρει, *Neaer.* 3, λαγχάνει βουλευναι
'Απολλόδωρος· δοκιμασθεὶς δὲ καὶ ὁμόσας
τὸν νόμον ὄρκον κτλ. Two of the
speeches of Lysias are concerned with
the δοκιμασία of a βουλευτής: *Or.* 31,
κατὰ Φίλωνος, is a speech for the prose-
cution; *Or.* 16, ὑπὲρ Μαντιθέου, for the
defence. § 9 of the latter speech shews
the wide scope of the scrutiny in such
cases: ἐν δὲ ταῖς δοκιμασίαις δίκαιον εἶναι
παντὸς τοῦ βίου λόγον διδόναι.

ἄρχοντας] Lys. *Or.* 26, κατ' Εὐάνδρον,
is a speech in accusation of one who was
appointed by lot to be First Archon in
reserve. The case was heard on the last
day but one of the preceding official year
(midsummer, B.C. 382). The next day
was a public holiday, and, in the event
of his rejection, an appeal was im-
possible: § 6, δικαστήριον...οὐ δυνατόν
πληρωθῆναι. Dem. *Lept.* 90 asserts that
the junior archons underwent a double
δοκιμασία:—τοὺς θεσμοθέτας δις δοκιμα-
σθέντας ἄρχεν ἐν τε τῇ βουλῇ καὶ παρ' ὑμῶν
ἐν τῷ δικαστηρίῳ. The δοκιμασία before
the βουλὴ is called an ἀνάκρισις in Dem.
Eubul. 66; it is described as affecting all
the archons (*ib.* 70). Cf. c. 55 § 2,

ἔφεσις] c. 55 § 2.

§ 4. οὐδὲν ἀπροβούλευτον] Plut. *Sol.*
19, quoted on c. 44 ult.

προγράψωσιν] 43 § 3 ult.

γραφῇ παρανόμων] Here the illegality
turns on a point of form. Among cases
in point are the motion of Androtion to
award a crown to the outgoing βουλὴ
(Dem. *Androt.* 5); and that of Thra-
sybulus to grant Lysias the citizenship of
Athens (note on 40 § 2).

XLVI § 1. τῶν τριήρων] Gilbert,

i 310² n. 2.

τῶν σκευῶν] esp. of 'naval stores and
engines,' and 'the tackling of ships.'
[Dem.] 47, c. *Euerget.* § 19, σκευὴ τρηπικά.
Xen. *Oec.* viii 12, διὰ πολλῶν...ξύλινων
σκευῶν ('oars,' 'rudders,' 'masts,'
'yards') καὶ πλεκτῶν ('cables') ὁρμίζεται
ναῦς καὶ ἀνάγεται, διὰ πολλῶν δὲ τῶν
κρεμαστῶν ('sails' and 'rigging') καλου-
μένων πλεί. The specifications of the
famous σκευοθήκη in the Peiraeus, designed
by the architect Philon under the ad-
ministration of Lycurgus (published by
Fabricius in *Hermes* and by Foucart in
Bull. Corresp. Hell., both in 1882), are
still extant (CIA ii 1054=Ditt. no. 352).
This σκευοθήκη was intended τοῖς κρεμα-
στοῖς σκεύεσιν, and (though not finished)
was probably already in use in B.C. 329,
a few years before the text was written.
Cf. Dürrbach, *Lycurgue*, pp. 64—73.

τῶν νεωσοίκων] Strictly speaking, the
νεώσοικοι are the sheds in which the
ships are laid up, and νεώρια the dock-
yards; but the terms are sometimes inter-
changed (cf. *Dict. Ant.* ii 206 a, and
Dürrbach, *l.c.* p. 65, n. 3). In [Xen.]
de Rep. Ath. iii 2, among the duties of
the βουλὴ we find νεωρίων ἐπιμεληθῆναι.
From B.C. 347 to 323 an annual property
tax amounting to ten talents was raised
for the building τῶν νεωσοίκων καὶ τῆς
σκευοθήκης (CIA ii 270).

καινὰς τριήρεις] Twenty, according to
Diod. xi 43. In B.C. 356/5 the Council
failed to build the requisite number of
new triremes; Androtion nevertheless
moved that they should receive the cus-
tomary compliment of a golden crown;
and for this he was attacked under a
γραφῇ παρανόμων (Dem. *Androt.* 8).